

**IN THE COURT OF 1ST ADDL.DISTRICT & SESSIONS JUDGE,
U.K. KARWAR, SITTING AT:SIRSI.
PRESENT**

**Sri. C.N.SUNAGAR,
B.Com.,LL.B.,(Spl)**

1ST ADDL.DISTRICT & SESSIONS JUDGE, SIRSI.

M.V.C. No.654/2015

Dated this the 31st day of March, 2017

Petitioner:

Nagendra G.G. S/o Ganapathi G.N.
a/a. 16 years, Minor, R/p By Next
Friend Father Ganapati G.N. S/o
Narayanappa, R/o Gumgodu,
Tq: Tumari, Sagar.

(By Sri.A.V.H. Advocate)

-VS-

Respondents:

1) The Managing Director,
NWKRTC, Gokul Road, Hubli.

2) Divisional Controller,
N.W.K.R.T.C Sirsi.

(respondent No.1 placed ex-parte)

(Respondent No.2 by Sri. M.S.T)

Nature of the petition	For Compensation		
Date of Institution of petition	19-12-2015		
Date on which the judgment was pronounced	31-03-2017		
Duration of the petition	Year/s 01	Month/s 03	Day/s 12

**1ST Addl.District & Sessions Judge,
Sirsi.**

J U D G M E N T

This petition is filed on behalf of petitioner against the respondent, under Section 166, for compensation in respect of the injuries sustained by the petitioner, in a motor vehicle accident.

2. The averments of the petition, in brief, are as follows:-

On 02.06.2014, the minor petitioner was going on the motorbike bearing registration No. KA-31/E-8160 as a pillion rider along with the rider from Sirsi to Heggarni (Bennehalli). When the said motorcycle was reached near Hondadagadde on Heggarni – Aminalli road, a bus bearing Reg.No.KA-25/F-2394 belonging to respondents involved in

the accident came from the opposite direction and dashed to the motorbike on which this minor petitioner was going. The accident was due to rash and negligent driving of the bus driver. Due to this accident the minor petitioner sustained injury to his right leg, head and other parts of the body. Immediately after the accident the injured was shifted to Government Hospital Sirsi and as per advise of the doctor immediately injured was again shifted to SDM Hospital, Dharwad for higher and better treatment. The minor petitioner as per the advice of the doctor he was shifted to City General Hospital, Davangere and was admitted in the hospital as indoor patient. The minor petitioner under went surgical operation to his right leg and rod was inserted and plastic surgery was done. He spent more than 80,000/- towards medical and other expenses and he is still under treatment. He is discharged from the hospital with a advice to take bed rest for 6 months and come up for check up periodically. The minor petitioner was looked after by an attendant when he hospitalized and when he was under rest. The minor petitioner is a student and priest and also helping his father in agricultural work earning more than Rs.8,000/- per month and due to this accident this

petitioner could not work for many months and could not go to the school for many months. Therefore due to this accident there is loss of earning and loss of career to this minor petitioner and there may be disability. So this application is filed for compensation of Rs.10,00,000/- towards medical charges, transportation charges, disability, food and nourishment, mental shock, pain and agony, suffering, loss of income during treatment, attendant charges and other charges and future prospect etc.,

3. The respondent No.1 has remained exparte The respondent No.2 has appeared through his counsel and filed separate written statement that, the instant petition filed by the petitioner is not legally maintainable in law and contrary to the fact of the case and as such it deserves to be dismissed. It is not admitted that the petitioner sustained injuries as mentioned in the petition and it is not admitted that the petitioner took first aid treatment at S.D.M. Hospital, Dharwad for higher treatment and has incurred more than Rs.80,000/- towards medical expenditure are totally false. It is further admitted that, the averment of the plaint para No.11, 13, 21

and 23 are totally false and at the time of accident the driver of the Bus bearing No.KA-25/F-2394 drove the same very slowly and cautiously on the left side of the road. When the bus reached Hondadagadde on Heggarani-Amminalli Road, the motor cycle bearing Reg.No.KA-31/E-8160 comes from opposite direction with rash and negligent manner and hit the bus. There was no fault of driver in this accident. It is further submitted that this respondent reserves his right to amend his W.S and file additional objections if necessary at the appropriate stage. It is submitted that the petitioner has to prove that the motorcycle rider was riding the motor cycle without having any valid D.L at the time of accident. It is submitted that the petitioners and respondent have to prove that the Bus bearing Reg.No.KA-25/F2394 was insured with this respondent insurance company. But the liability if any, of this respondent insurance company is subject to the terms, conditions, limitations and exceptions of the policy. The liability is subject to the validity of the driving license of the driver of the insured vehicle. Hence this insurance company is not liable to pay any compensation to the petitioner nor liable to indemnify the owner. Hence this insurance

company is not liable to pay any compensation to the petitioners and the petition may kindly be dismissed in limine. This court has no jurisdiction to try this case. Therefore this respondent prays that this court be pleased to dismiss the petition with costs in the ends of justice.

4. On the basis of the pleadings of the parties, the following issues arises for my consideration:

- 1. Whether the petitioner proves that on 02.06.2014 at about 2.30 p.m. the petitioner was proceeding on the motor cycle bearing Reg.No.KA-31/E-8160 as a pillion rider from Sirsi to Heggarni (Bennehalli). When they were proceeding near Hondadagadde on Heggarni-Aminalli road a bus bearing Reg.No.KA-25/F-2394 came from opposite direction and dashed against their motor bike on account of which the petitioner has sustained grievous multiple injuries and that the accident was occurred only due to rash and negligent driving of the KSRTC bus bearing Reg.No.KA-25/F-2394 by its driver?**
- 2. Whether the petitioner is entitled for compensation, as claimed? If so at what quantum and from whom?**
- 3. What Order or Award?**

5. To prove the case, the next friend father of the minor petitioner is examined as P.W. 1 and also examined the doctor who treated the petitioner as PW-2 and got marked 10 documents as Exs. P-1 to 10 and closed the side of petitioner on behalf of the respondent No.2, the conductor Bhaskar Shankar Ankola is examined as RW-1 and respondent no.1 has not adduced any evidence as placed an exparte.

6. I have heard the arguments and perused the records.

7. On the consideration of the entire materials, I answer the above Issues as follows:-

Issue No.1 : In the Affirmative

Issue No.2 : In the affirmative

Issue No.3 : Partly in the affirmative for Rs. 4,19,900/- and from respondents,

Issue No.4 : As per final order for the following:

REASONS

8. Issue No.1: To prove the involvement of the KSRTC Bus bearing registration Reg.No.KA-25/F-2394 belongs to the respondents, the minor guardian of the petitioner who is father has got examined

himself as PW-1 and reiterated all the averments made in the petition.

9. To prove the accident the petitioner has relied on the true copies of FIR Complaint and charge-sheet etc., which are marked at Ex.P-1 and Ex.P-2. On perusal of the FIR/Complaint which is marked at Ex.P1 it is found that the Siddapur Police have registered the case bearing crime No.102/2014 on 2.06.2014 against the driver of the bus bearing Reg.No.KA-25/F-2394. Ex.P-3 is the charge-sheet. On perusal of the same it is found that the Siddapur police have after thorough investigation have filed this charge sheet against the driver of the offending bus bearing Reg.No.KA-25/F-2394. The learned counsel appearing for the petitioner has submitted that though the charge-sheet is filed against the driver of the bus on which the rider of the Bus bearing Reg.No.KA-25/F-2394 belonging to respondents. The respondent No.1 placed ex-parate and the respondent No.2 has filed his objections and denied the fact of accident injuries sustained and liability and income of the minor petitioner. Respondent also got examined the conductor of the bus involved in this accident as RW.1.

RW.1 in his examination deposes that on 02.06.2014 their bus bearing Reg.No.KA-25/F-2394 came from Heggarani to Sirsi, when they reached near the curve at Honnadagaddi on Heggarani – Amminalli road, in front of his bus a motorcyclist bearing Reg.No.KA-31/E-8160 drove his motor cycle in rash and negligent manner and in a high speed and suddenly applied the break of his motor cycle and therefore it was skid on account of which he fell down and sustained injuries and it was not at all touched to the bus. According to him accident occurred only on account of the rash and negligent act of rider of motor cycle and not on account of rash and negligent act of driver of the bus. In his cross-examination he has denied the suggestions put by the learned counsel appearing for the petitioner in toto.

10. According to the RW.1 as the rider of the motorcyclist drove the same with rash and negligent manner and on account of which accident was occurred and same suggestion was put to the petitioner in his cross examination, but he has denied the same. RW.1 has taken the defence of altogether a different story which were not at all

appeared in the written statement or in the charge sheet. Therefore it is crystal clear that because of the user of the said bus bearing Reg.No.KA-25/F-2394 belonging to respondents, the said accident has been taken place and in the said accident the minor petitioner has sustained some grievous injuries as per the wound certificate produced in this case marked at Ex.P-2, disability certificate marked at Ex.P10 and medical bills produced as per Ex.P-6. Therefore in the considered view of this tribunal the minor petitioner is able to prove that because of rash and negligent driving by the driver of the Bus bearing Reg.No.KA-25/F-2394 belonging to respondents the said accident has been taken place. Though the respondents have taken up contention that there was no any negligence on the part of the driver of the offending bus in question, but they have not placed any cogent and convincing evidence to that effect. Therefore the defence taken by the RW.1 in his evidence remained as only mere defence and nothing else. Therefore I answer Issue No.1 in the **Affirmative**.

11. **Issue No.2:-** Admittedly the respondent No.1 is the owner of the KSRTC Bus bearing Reg.No.KA-25/F-2394 which was driven by its driver and this fact is not at all disputed by the respondent.

To prove the injuries sustained by the petitioner, the petitioner has relied on wound certificate, discharge Summary marked at Ex.P.2, P4 and Disability certificate marked at Ex.P-10 respectively and as per the documents the petitioner has sustained the following injuries:

Right lower limb (full thickness) dyleving injury – enterokrial aspect of thigh and up to foot exposing muscles of leg 35 x 15 cm.

As per discharge summary marked at Ex.P4 there is a fracture of right tibia.

12. To prove the expenses incurred by the father of the minor petitioner towards medical and other expenses the father of the minor petitioner has relied on the 75 medical bills marked at Ex.P-6. 2 Hospital bills marked at Ex.P-8 and 9. Inpatient bill marked at Ex.P5. He has also produced the two positive photographs marked at Ex.P-7. On going through the medical bills and inpatient bill

produced in this case it is found that the father of the minor petitioner has incurred total Rs.76,529/- towards the medical and hospital bills for which the father of the minor petitioner is entitled for the same which is rounded off Rs.77,000/-.

13. Further admittedly the petitioner is a minor as on the date of petition and he was aged about 15 years and school going boy under law he has not any income, but his notional income has to be assessed at Rs.30,000/- per year in case of a minor as per principles laid down in the ruling reported in

2013 ACJ 2594 IN THE SUPREME COURT OF INDIA AT NEW DELHI (Krishan Gopal and another –Vs- Lala and others) Negligence-Tractor-trolley overturned and a boy travelling in trolley sustained fatal injuries-Police filed charge-sheet against driver and owner of offending vehicle-Father of the deceased deposed that tractor-trolley was driven in a high speed, rashly and negligently, turned turtle, boy fell down and sustained fatal injuries-Another witness corroborated father's statement and deposed that tyre of tractor ran over the deceased –Owner and driver were exparte before the Tribunal-Insurance company has not challenged the evidence of the witness and adduced no evidence in rebuttal Tribunal found that claimants have not succeeded in proving that deceased died because of falling from tractor-trolley which was driven rashly and negligently by its driver-Tribunal's finding which was

affirmed by High Court set aside and held that deceased died due to rash and negligent driving of tractor-trolley. Quantum-Fatal accident-Deceased boy aged 10 was assisting his father in his agricultural work –Claimants: father and mother aged 36-Apex Court taking into consideration drastically falling rupee value, assessed notional income of the deceased at Rs.30,000/- p.a., adopted multiplier of 15 and allowed Rs.4,50,000/- plus Rs.50,000/- under conventional heads towards loss of love and affection, funeral expenses and last rites; total Rs.5,00,000/-

14. Admittedly the petitioner has examined PW-2 the doctor who has issued the disability certificate as per Ex.P-10 and who has deposed that the minor petitioner has sustained permanent disability at about 45% to 50% in relation to right lower limb due to injuries sustained by him. Since the said percentage of disability is given to particular limb compared to whole body but looking to the condition of the leg which is found photographers marked in Ex.P7 it is just and proper to consider the same at 50% of the disability as disability compared to whole body also as considering his functional disability. It is just and proper to take the income of the minor petitioner at Rs.30,000/- per annum in this case. As per the principles laid down in the above cited ruling relied by the Advocate for petitioner. The petitioner has stated his age as 15 years as on the date of the

accident and it is evident from Ex.P2 wound certificate and Ex.P4 discharge summary and so this tribunal considers the age of the petitioner as 14 years as mentioned in the wound certificate. Since the age of the petitioner is below 15 years as well as in view of the citation referred above as well as per the multiplier applicable as per the latest decision of Hon'ble Supreme Court reported in **2009 (2) Supreme Court (Criminal)1002 (Sarala Varma & Others Vs. D.T.C and Another)** the proper multiplier would be 15 income is @ Rs.30,000/- and 50% disability = Rs.30,000/- x 45% x 15 multiplier = Rs.2,02,500/- and therefore the petitioner is entitled for a compensation of Rs.2,02,500/- towards the loss of comforts and amenities of life.

15. Looking to the age of the petitioner that too who is the minor boy the photographs produced in this case marked at Ex.P-7 since the skin grafting is made by removing the skin from the right leg which will clearly goes to show that there is a disfiguration of both the legs of this boy and which will remain permanently through out his life which will affect his future prosperity. In this circumstance

the petitioner is entitle for some compensation amount under the head of disfiguration of his both the legs and also under the head loss of comforts and amenities of life.

16. Looking to the nature of injuries sustained by the petitioner, period of treatment, amounts spent for medical treatment, food and nourishment, transportation, conveyance etc., this tribunal has to award an adequate compensation to the petitioner. Since the income of the petitioner which is a notional income assessed at Rs.30,000/- per year and the petitioner is a minor aged about 13 years up to 15 years age the multiplier 15 is applicable in view of the recent decision of the Apex Court reported in **2009 (2) Supreme Court (Criminal)1002 (Sarala Varma & Others Vs. D.T.C and Another)**. Therefore the petitioner is entitled for the compensation under the head loss of comforts and amenities of life and also for disfiguration and for loss of his marriage prospectors etc., Thus, the petitioner is entitled for compensation under the following heads:-

1. For pain and sufferings	Rs.	60,000-00
4) For attendant charges at Rs.100/- per day for a period of 54 days only	Rs.	5,400-00
2. For food and nourishment, transportation Conveyance charges and other incidental Charges including medical bills of Rs. 76,529/-	Rs.	77,000-00
3) Loss of comforts and amenities of life Rs.30,000/- x 40% disability x 15 multiplier	Rs.	2,02,500-00
4) Compensation for disfiguration	Rs.	50,000-00
5) Compensation towards loss of marriage prospectors.	Rs.	25,000-00

Total		Rs. 4,19,900=00

17. Hence the petitioner is entitled for the above compensation amount of Rs. 4,19,900=00 with interest at the rate of 6% p.a. from the date of petition till the payment and the petitioner is not entitled for the compensation under any other heads.

25. Since this tribunal has already come to the conclusion that there is a negligency on the part of the rider of the KSRTC bus also. Under this circumstance the negligency attributed on the part of the driver of the KSRTC Bus, the respondent Nos.1 and 2 being the owner and having the self insurance fund for the said KSRTC Bus are jointly and severally liable to pay the compensation amount to the petitioner. Hence I answer Issue No.2 **partly in the affirmative**, awarding a compensation of Rs.4,19,900=00 from the respondent No.1 and 2 with 6% interest from the date of petition till the payment of award amount.

18. **Issue No.4:** In the light of the above reasons and discussions on issue No.1 to 3, I proceed to pass the following :

ORDER

The claim petition filed by the petitioner u/s. 163A of Motor Vehicle Act is hereby partly allowed with costs.

The petitioner is awarded a compensation of Rs. 4,19,900=00 (Rupees four lakhs nineteen thousand nine hundred only) with interest at 6% p.a., from the date

of the petition till its payment from the respondent jointly and severely.

The respondents are directed to deposit the award amount in the tribunal within 30 days from the date of the order.

After deposit of the aforesaid amount, in the tribunal with interest accrued there on, 50% of compensation amount shall be deposited in the name of the minor petitioner in any nationalized bank for a period of three years and remaining balance amount of 50% of the compensation amount with interest accrued thereon shall be released in favour of the petitioner through an account payee cheque on proper identification by his counsel. The minor guardian shall utilize the said amount for the welfare and education of the minor petitioner.

Issue necessary direction to the concerned bank not to permit to raise any loan or give any advance on the fixed deposit of the petitioner.

However the petitioner is entitle to receive the periodical interest on the said fixed deposit directly from the bank and the minor guardian shall utilize the said amount for the welfare and education of the minor petitioner.

Advocate fee is fixed at Rs.1,000/-.

Draw an award accordingly.

(Dictated to the stenographer, transcribed by her, corrected by me and then pronounced in the open court this 31st day of March 2017.)

(C.N.SUNAGAR)
1st Addl. District & Sessions Judge,
Sirsi

ANNEXURE

List of witness examined on behalf of the petitioner:

P.W.1 : Nagendra G.G S/o Ganapati G.N.
P.W.2 : Dr. S.Nelivigi.

List of witness examined for respondents:

RW-1: Baskar Shankar Ankola.

List of documents exhibited on behalf of the petitioner:

Ex.P.1: True copy of F.I.R/Complaint
Ex.P.2: Wound certificate.
Ex.P.3: True copy of Charge Sheet
Ex.P.4: Discharge summary.
Ex.P.5: In patient bill.
Ex.P.6: 75 medical bills.

Ex.P.7: 2 positive photos.
Ex.P.8 & 9:2 city central hospital bill.
Ex.10: Disability certificate.

List of documents marked on behalf of respondents:

- N I L -

1st Addl. District & Sessions Judge,
Sirsi.